



Are There Authoritative Beliefs?

Author(s): Leon Roth and Shubert Spero

Source: *Tradition: A Journal of Orthodox Jewish Thought*, Vol. 5, No. 1 (FALL 1962), pp. 121-126

Published by: [Rabbinical Council of America](#)

Stable URL: <http://www.jstor.org/stable/23255479>

Accessed: 24-09-2015 16:40 UTC

Your use of the JSTOR archive indicates your acceptance of the Terms & Conditions of Use, available at <http://www.jstor.org/page/info/about/policies/terms.jsp>

JSTOR is a not-for-profit service that helps scholars, researchers, and students discover, use, and build upon a wide range of content in a trusted digital archive. We use information technology and tools to increase productivity and facilitate new forms of scholarship. For more information about JSTOR, please contact support@jstor.org.



Rabbinical Council of America is collaborating with JSTOR to digitize, preserve and extend access to *Tradition: A Journal of Orthodox Jewish Thought*.

<http://www.jstor.org>

COMMUNICATIONS

ARE THERE AUTHORITATIVE BELIEFS?

TO THE EDITOR OF *TRADITION*:

I am much honored by the detailed comments on my *Judaism, A Portrait*, in your issue of Spring 1962; and if I advert to some of them, it is not in order to exculpate the author who is only too conscious of his shortcomings but to bring the issues involved into a fuller light. They seem to me to be of such importance as to demand the attention of all students.

In the eyes of the reviewer, the author of the book is, on many central points, "evasive." He certainly is. He gives no directives. He does not tell his readers whether or not they are to "believe" this or that. He seems to delight in leading them to one conclusion and then offering reasons which suggest another. He blurs differences; highlights one thinker; omits even a reference to others. He does not explain clearly his view of revelation.

I agree; but is not this precisely the very nature and prerogative of Aggadah, and is it not in this that

part of the great strength of Judaism has always lain? Is not the distinction between Aggadah and Halakhah fundamental? The reviewer is surely asking for a *Pesak Din* (and a *Posek*) in regions where there is and can be no such thing. Aggadah can suggest, can try to persuade; it can ridicule, divert, dismiss; but it cannot compel. True, it may pass into Halakhah as Professor Jacob Katz's recent books have shown with an abundance of happy illustration. But for decision to be exercised or invoked, Aggadah must have *already passed into* Halakhah. While *not yet* Halakhah, it offers decision no place.

The reviewer thinks it "likely that one going to his death in Sanctification of the Name might wish to have something 'authoritative' on the Jewish concept of immortality." It is indeed likely (although the idea of purely disinterested action does, *pace* the reviewer, exist: what else could Antigonos of Socho have meant?); and so we find it in the saga of Maccabean martyrdom. But "authoritative"? What can one tell an enquirer but that most Jew-

ish thinkers since the medieval period have accepted the doctrine? Is this "authority"; or are we to bolster ourselves up with the names of Ducasse or Salter (Aristotle and Kant being out of date) and say that some of the moderns allow it (or rather, do not disallow it) if "faith" so demands? But suppose I (for the sake of argument) take my stand on the "thirteen articles" and say: "Thus far and no farther." Where does the doctrine of immortality stand then? Dr. Kaddushin has shown decisively that (as was already noted by Maimonides) the consensus of talmudic opinion was in favor of the doctrine of the resurrection of the body, and it is this doctrine which has imprinted itself on the Prayerbook. By what "authority" dare I, or even your reviewer, pass over Talmud and Prayerbook (and Bible!) in favor of what is commonly held to be a loan from the Greeks? As a fact we do, but not as a point of Halakhah, i.e., as a rigid and unquestionable decision; and I should be surprised if even the strictest rabbi of our day would, if appealed to, excommunicate me if I denied the immortality of the soul. (I doubt whether he would, even if I denied the resurrection of the body, although perhaps he ought to.) And this is not only because excommunication is out of fashion in most Jewish communities today. It is because, as Ravad said on a famous occasion: "The doctrine may be true, but many great and learned men have believed the contrary."

May I suggest that it is vital

to distinguish between implicit belief and overt dogma. A logician might show that this, that or the other doctrine is "pre-supposed" in the actions and statements of (say) Abraham. It does not follow that Abraham would have agreed. When faced with them he might have denied them, or said that if such were the case, he regretted what he had said or done. For example, if he had read what Kierkegaard said about him, I think he would have torn his garments! But even assuming the alleged pre-suppositions to be sound, is it really true that Judaism could not exist without the conscious acceptance of (e.g.) Albo's three principles? It may be that they are "implicit" in Judaism (incidentally, I think myself that Abarbanel's treatment of the subject in his *Rosh Amanah* is much more intelligent than Albo's); but has not historical Judaism managed to escape the snare of dragging them into the light and insisting on them *totidem verbis*? Is not the reviewer (again!) confusing Aggadah with Halakhah and asking for halakhic decision in the field of Aggadah? Akiba at the stake proclaimed the unity of God, not a belief in immortality and reward and punishment. He may well have believed in these as well; but his well-known hedging on the topic of free-will, a hedging which I have always looked upon as characteristically Jewish, would suggest that he might have hedged here too.

I am afraid my partiality for Maimonides has deceived my reviewer. I find Maimonides the

Communications

clearest head (indeed, at times, the only clear head) among our theorists of Judaism. But I do not hold him infallible. His principal importance for us is surely that he gave us something reasoned out. But we are not bound to accept his reasoning, any more than we are bound to accept that of the late Mr. G. E. Moore whom your reviewer seems (to my mind, somewhat strangely) to consider an "authority" on ethics. Maimonides may not have helped us out of "interest moralities" but he went a long way towards it. Yet we must remember, too, that "interest moralities" may in the end prove to be sound. Why turn fruitful ideas into incontrovertible dogmas? Perhaps Job was right when he said he didn't know.

I always have to apologize for my attitude to the Kabbalah. As your reviewer perceived, and as I stated, I do not like it. I have studied and much admire the writings of Professor Scholem. As scientific investigations in a comparatively untouched field they have my highest respect. Professor Scholem has helped us all to understand what the *Zohar* said. But that does not mean that we have to accept it as Judaism. For myself, the more I understand it, the less I like it. Professor Scholem has shown that much of the Kabbalah is a resuscitation, through hitherto untraced channels, of gnostic mythology, and any reader of the XI-XIIth century literature of the "Courts of Loun" and the Albigensian and kindred heresies knows that they present sim-

ilar puzzles both as to content and to origin. But let the channels be what they may, is gnostic mythology to be our Bible? Candidly, I prefer the old one! My personal view is that of Maimonides and Hermann Cohen that the aim (and partial achievement) of Judaism was precisely the destruction of mythology. If this view is sound (and we have to remember that the destruction of mythology is a continuing process and should be looked upon, in Kantian phraseology, as a *regulative* and not a constitutive idea, that is, a hope and object of striving rather than a fact), then Kabbalism is a step backwards. It is a relapse, a degeneration. Your reviewer may disagree and consider the *Zohar* (in Professor Scholem's words as quoted by W. T. Stace) a "source of doctrine and revelation equal in authority to the Bible and the Talmud"; but this matter is one of Aggadah, not of Halakhah, and in matters of Aggadah there is no *Din*.

As for the "place of the land of Israel in the scheme of Judaism," I gave my views at sufficient length in my chapter on the "Community of Holiness." I fancy that the reviewer has fallen into the conventional confusion between the "*Land of Israel*" and the "*State of Israel*." The State of Israel has worries which neither I nor your reviewer can, or has the right to try to, solve; but are they, all or in part, connected with *Judaism*? In any case would it not be wiser for us to try and make up our minds first what Judaism is and

only afterwards (and at this stage, I should have thought, each for himself) what our attitude to the new State is to be.

I confess that, even after reading my *Portrait*, I do not know. But as I said in my Preface, my concern is to promote fresh thinking on the subject, and I am grateful to your reviewer for having set the ball rolling and to you, Sir, for having let it roll. I suggest that as a next step you invite some of your learned contributors to turn their attention to the problem of Authority in *matters which do not fall under the rubric of Halakhah*. I know it is an old problem but it is no less important for that; and it is peculiarly pressing today. Is there any approach possible other than the historical one, and does Aggadah in *these matters* ever crystallize into Halakhah, and if so, when and how?

LEON ROTH

Brighton, England

RABBI SPERO REPLIES:

The generally objective tenor of Professor Roth's letter deserves not the usual polemical "reply," but an attempt at earnest dialogue. I shall, therefore, address myself to the issue (although some of our correspondent's parenthetical thrusts tempt me sorely) in an attempt to "roll the ball" a bit further.

Clearly, Professor Roth favors the historical view in accounting for the theological principles of Judaism, while I would press for the primacy of the logical approach. I would hesitate, however, to accept Professor Roth's formu-

lation of the issue, i.e., "does Aggadah in these matters ever crystallize into Halakhah"? The nomenclature is too vague and cumbersome and imposes upon him who would answer in the affirmative, the alchemical task of transforming one thing into something else — a truly dubious undertaking. Aggadah is not a primitive term denoting a specific type of subject matter. Aggadah includes all material that is not Halakhah. However, materials may be non-halakhic for different reasons and their relationship to Halakhah, therefore, may vary. Consider historical material — a narrative with a moral lesson. Now the narrative as such does not ever pass over into Halakhah for the same reason that history is not law. The moral value exhibited in the narrative, however, may very well have long been a moral imperative reflected in the Halakhah. Hence, aggadic material of a historic character, because of its nature, can never become Halakhah; on the other hand, aggadic material of a moral character probably always was rooted in the Halakhah. Aggadic material of a philosophic character, however, can, and has become Halakhah under certain conditions. For Halakhah is primarily a method whose end product is, indeed, "positive, prescriptive law," but which can be applied to theoretical material as well as to practical matters, to concepts as well as to deeds, to duties of the heart as well as to duties of the limbs. Aggadah may only be "theory" but surely there is a right theory and

Communications

a wrong theory. And if, as Professor Roth has admitted, theories have practical consequences, then these too are subject to the "pressure of the need for action." Hence, the Mishnah asserts authoritatively that he who denies the Torah is of Divine Origin, or that Resurrection of the dead is to be found in the Torah, or the Apikorus (see Maimonides' definition), has no share in the world-to-come and ceases to be a part of the community of Israel. This teaching has many echoes in the Halakhah, amongst which are *Yoreh Deah*, 119:7, 158:2, and 2:9. Reflected here is the realization that belief in certain basic theoretical principles, such as the existence of God, Revelation, and Reward and Punishment, are necessary conditions for a commitment to Judaism. These are the "implicit beliefs" that are thus made explicit and have become part of Halakhah.

But what are Professor Roth's objections? He asserts that even if we should admit that implicit beliefs can be rendered explicit, as, for example, in the case of an Abraham, yet, "it does not follow that Abraham would have agreed." Indeed, it does not. All I can say, however, is that if, in point of fact, logicians show a particular doctrine to be "pre-supposed" in someone's statement, and when confronted with same, the individual denies it, then, so much the worse for the individual. All that such a condition proves is that a certain individual is either unperceptive or inconsistent, facts I

would not wish to believe about Abraham.

It is not that Professor Roth fails to see this, but that he *fears* this. He fears what he feels are the inevitable consequences of a Judaism possessed of a systematic theology. For why else should he look upon "dragging implicit beliefs into the light" as a "snare." The danger is expressed thus in his Portrait: "If Maimonides had truth, then every other view was false. He thrust many men out of Judaism by laying down a boundary . . ." This may be so, but the remedy is not to cease laying down boundaries, but to lay down the right boundaries. As indicated, Judaism already has boundaries of belief. Awareness of these extreme limits help us to realize, for example, that Kaplan's god is not God, and Petuchowsky's revelation is not Revelation, and Silver's torah is not Torah. Beyond this point is the ongoing task of Jewish theology — to make explicit what is implicit, to determine what are precisely the pre-suppositions of our faith and to raise to the level of reflective consciousness the rational underpinnings of Judaism. Indeed, the objection of the Ravad was not directed at this process, but against the raising of a certain theory by Maimonides without apparent warrant from the Mishnah, to the position wherein all who denied it have no share in the community of Israel. Albo clearly distinguishes between doctrines denial of which would cause the collapse of the entire structure of Judasim, (God, Revelation, and Reward

and Punishment) and doctrines which are implicit in Judaism, denial of which would be considered erroneous and sinful yet would not thrust one out of the community of Israel (Messiah, Freedom of Will, Creation, Incorporeality).

But there is a third class of doctrines wherein it appears that one may have an option between alternative beliefs, an area where the discussion still continues and should continue as to what Judaism implies — for example: does Judaism require a belief in *creatio ex nihilo* or is some belief in a pre-existent matter possible? (See I. Epstein in his "Faith of Judaism" for an analysis of Maimonides' position on this and its application to the question of whether the Theory of Evolution is compatible with the Genesis account.) Can a Jew believe that God may reveal another Torah? What reflects the more ultimate eschatological state — resurrection or immortality of the soul? Is salvation in Judaism dependent primarily upon intellectual attainments or the cultivation of attitudes? What does Judaism involve in terms of psychological theory?

This is the task of Jewish theology today — to analyze and delineate by direct recourse to the text of Scripture and by logical analysis of its fundamental beliefs and practices the theoretical principles of Judaism.

In truth, I ask neither for a *Pesak Din*, nor do I seek to excommunicate anybody. I simply address myself to a rational individual who presumably has made

the commitment and ask:

1. Does not the concept of God's justice, promise of Reward and Punishment contained in the Bible, and inequity of the distribution of goods in this world point to a transworldly existence of the soul?
2. Does not the divine origin of the soul ("and He breathed into his nostrils the breath of life") suggest a more spiritual destiny than mere dissolution with the body?
3. Does not the doctrine of the resurrection of the dead itself imply some concept of an immortal soul?
4. Do not such references in the Torah as, "then Abraham . . . died in a good old age . . . and was gathered to his people" which occurs before his burial imply a belief in a life after death?

Thus, in questioning Professor Roth about immortality of the soul, I do not point to "authority," but rather to implication, entailment and coherence.

(Rabbi) SHUBERT SPERO

"RED OR DEAD?"

TO THE EDITOR OF *TRADITION*:

Rabbi Maurice Lamm's article "Red or Dead?" is a most interesting and thought-provoking one. It was indeed a pleasure to note the reasoning he develops and the methods he employs in reaching his tentative conclusions.

However, I wish to point out certain weak points in the argu-